

STATE OF CALIFORNIA – COUNTY OF SACRAMENTO

SEARCH WARRANT AND AFFIDAVIT
(AFFIDAVIT)

Special Agent Jane Doe, swears under oath and declares under penalty of perjury that the facts expressed by her in this Search Warrant, Affidavit, and the attached and incorporated statement of probable cause are true and that based thereon she has probable cause to believe and does believe that the property described below is lawfully seizable pursuant to Penal Code Section 1524, as indicated below, and is now located at the location(s) set forth below. Wherefore, affiant requests that this Search Warrant be issued.

NIGHT SEARCH REQUESTED: ☐ YES ☐ NO Justification on page(s): ____

AFFIANT'S SIGNATURE: _____

AFTER BEING SWORN

REVIEWED BY: _____

DEPUTY DISTRICT ATTORNEY

(SEARCH WARRANT)

THE PEOPLE OF THE STATE OF CALIFORNIA TO ANY SHERIFF, POLICEMAN OR PEACE OFFICER IN THE Error: Reference source not found: proof by affidavit having been made before me by Error: Reference source not found, that there is probable cause to believe that the property described herein may be found at the locations set forth herein and that it is lawfully seizable pursuant to Penal Code Section 1524, as indicated below by "x"(s) in that it:

- ☐ was stolen or embezzled.
- ☐ was used as the means of committing a felony.
- ☐ is possessed by a person with the intent to use it as means of committing a public offense or is possessed by another to whom he or she may have delivered it for the purpose of concealing it or preventing its discovery.
- ☐ tends to show that a felony has been committed or that a particular person has committed a felony.
- ☐ tends to show that sexual exploitation of a child, in violation of Penal Code Section 311.3 has occurred or is occurring.

YOU ARE THEREFORE COMMANDED TO SEARCH THE PREMISES OF:

LOCATION:

Sprint Communications Company LP, 6330 Sprint Parkway, Overland Park, Kansas 66251.

Further described as:

an Internet Service Provider doing business in California and has as an agent of service Prentice Hall Corporation, located at 2730 Gateway Oaks Drive, Suite 100 in Sacramento, Sacramento County, California, and a business that has computer equipment in Rancho Cordova, Sacramento County, California, that was used to develop the following requested records.

FOR THE FOLLOWING PROPERTY:

1. The subscriber information, including the name or names on the yet-to-be-identified account, including all user names associated with the account, billing information, correspondence between the account holder and Sprint regarding the account in question, and record of contact between the account holder and Sprint regarding the account that will be identified through the below IP addresses and dates and times of connection.

2. The destination IP and the method of connection to target computers in which Kim, the user, was connected to for the following sessions:

- (a) On 11/10/01 from approximately 21:19:37 hours to 22:15:00 Pacific Standard Time and from 22:15:00 to 23:05:00 using IP number 206.133.209.247 (sdn-ar-004carcorP231.dialsprint.net); and
- (b) On 11/10/01 from approximately 0655 hours to about 0740 hours PST using IP address 63.178.147.69.(sdn-ar-007carcorP109.dialsprint.net).

NON-DISCLOSURE ORDER

It is further ordered that Sprint is not to notify any person (including the subscriber or customer to which the materials relate) of the existence of this order for 90 days in that such a disclosure could give the subscriber an opportunity to destroy evidence, notify confederates, or flee or continue his flight from prosecution

 The court orders the entire/designated portion of the affidavit sealed. Said sealed portion shall not
initials be opened except upon order of the court. Designated portion: _____

The court orders that any items seized during the lawful service of this search warrant be disposed in accordance with the law, by the Sacramento County Sheriff's Department, upon adjudication of the case. The officers serving the search warrant are also hereby authorized, without necessity of further court order, to return seized items to any known victim(s) if such items have been photographically documented.

If necessary, searching officers are authorized to employ the use of outside experts, acting under the direct control of the investigating officers, to access and preserve any computer data.

Searching officers are authorized to videotape and/or photograph the entry and search of the premises described herein, at the discretion of the searching officers.

AND TO SEIZE IT IF FOUND and bring it forthwith before me, or this court, at the courthouse of this court. This Search Warrant and incorporated Affidavit was sworn to as true and subscribed before me this _____ day of _____, 2002, at _____ A.M./P.M. Wherefore, I find probable cause for the issuance of this Search Warrant and do issue it.

(Signature of Magistrate) Night search approved: YES NO
(Magistrate's Initials)

Judge of the Superior Court, Sacramento, State of California

Executed By: _____ Date: _____ Time: _____

Affidavit in Support of Search Warrant County of Sacramento

Your affiant is Jane Doe, a Special Agent with the California Department of Justice, Bureau of Investigation, and a sworn peace officer in the State of California. I am currently assigned to the Sexual Predator Apprehension Team. I have been with this Department since November of 2000. Prior to this, I was employed with the Yolo County District Attorney's Office, where I was a sworn Investigator for six years. While with the District Attorney's Office, I was assigned to the Sacramento Valley Hi Tech Crimes Task Force, a task force consisting of local, state and federal law enforcement officers to investigate all crimes involving computer technology, including Internet Crimes. As part of this assignment, I routinely examined the various types of electronic storage media, including hard drives for evidence of criminal wrongdoing. I have examined approximately 400 computer hard drives for evidence and approximately 1500 other types of storage devices, again for evidence. I have taken three SEARCH Group, Inc. courses regarding the investigation of computer crimes, including The Investigation of Computer Crimes, The Seizure and Examination of Microcomputers and Internet Crimes. I have attended three national conferences that included hands-on training in the investigation of computer crimes. I have completed the 80-hour International Association of Criminal Investigative Specialist (IACIS) training course on the seizure and examination of computer evidence. I have taught a computer course for the University of Davis, California Extension program in basic computer security. I have taught a two-hour course on the investigation of computer crimes and seizure of electronic evidence at the California State Parole Academy and a four-hour class on the same subject for the Sacramento Police Department in Advanced Training. I possess a bachelor's degree in Criminology. In Spring of 2001, I attended the California Sexual Assault Investigators Association training conference, which included lectures on the various aspects of sexual assault investigations. In October of 2001, I attended the 40-hour course on Sexual Assault Investigation put on by the Sacramento Regional Public Safety Training Center. The class consisted of lectures on the various aspects of investigating sexual assault crimes. In March of 2001, I attended the Western Regional Symposium on Crimes Against Children, including lectures on online sexual exploitation of children. I've been the lead agent on undercover operations designed to identify sexual predators of children that has resulted in the conviction of attempted child molesters. I have also worked in an undercover capacity in these operations.

On 10/19/01, Paul Citizen, a resident of Canada, filed an online complaint with the California Department of Justice (DOJ), Public Inquiry Unit. In this complaint, Mr. Citizen reported that he had been "talking" to a girl about 13 years old on the Internet. Mr. Citizen has been counseling kids for 30 years and intuitively picked up that the girl was scared. Mr. Citizen developed a friendship with her and she gradually began to tell him that she had been molested by a babysitter. After more conversation, the girl revealed that her father and an adult friend of his has had sexual intercourse with her on a number of occasions. Mr. Citizen believed that she lives in the foothills somewhere in

central California. Mr. Citizen at one time lived in this area and the girl was familiar with some of the places in central California known to him.

Mr. Citizen saved the conversation he had with the girl, as well as her online identity. Mr. Citizen believed that a computer/Internet expert could identify the girl through the captured online information.

Mr. Citizen provided a telephone number and asked to be advised on what he should do.

On 11/7/01, I contacted Mr. Citizen by phone and interviewed him. Mr. Citizen said he has had conversation with this girl on five different occasions from 10/18/01 to 11/3/01. Mr. Citizen stated that for 30 years he has helped kids in trouble and recently helped a 12-year-old girl from England, who he developed a trusting relationship with over a period of time, admit that her father was molesting her. Mr. Citizen convinced the English girl to go to the authorities, which she did. It was determined medically that she was molested and her father was subsequently arrested. Mr. Citizen believes the California girl is also being molested, based on the similarities between the cases and the fact the California girl told him her father was molesting her.

Mr. Citizen provided that during these conversations with the California girl, she said, using her own words, that her father inserted his penis into her vagina. She further provided that it hurt at first but no longer does, indicating that this has occurred over a period of time. The girl said the first time it happened she bled. The girl wants to have sex with her father because she said it makes her feel special and it makes him happy. The girl further provided that her mother does not know of the relationship and she wants to keep it that way. She felt her mother would hate her if she found out about it. The girl also said her father was doing "sexual" things to her 11-year-old sister, but did not go into detail.

The girl further revealed that when she was about 8 years old, a female baby sitter touched her on the vagina with her finger. The girl said this felt good and as payback, she orally copulated the adult female. The girl was naked when this occurred. The girl said the babysitter was about 18 years old.

Mr. Citizen is a naturalist and believes in nudism. As such, he operates an Internet Relay Chat (IRC) channel. It is this channel that the California girl entered using the nick name "lilkimmy" on 10/18/01, at which time lengthy conversations over more than a two-week period between Mr. Citizen and lilkimmy ensued. Mr. Citizen asked lilkimmy for her age. Lilkimmy refused to tell him. Mr. Citizen asked her where she lived. Lilkimmy refused to tell him but vaguely provided that she lived somewhere between Yosemite and South Lake Tahoe. She also recognized the names of towns like Placerville and Coloma and said she had been to Sutter's Mill. Lilkimmy told Mr. Citizen she was not in high school and was very close to 13-15 years old. Lilkimmy said she was about four feet, nine inches tall and weighed less than one hundred pounds, and she just started her period. Lilkimmy would not confirm that her name was Kimberly or

a contraction thereof but approved of Mr. Citizen calling her Kim. Kim feared telling Mr. Citizen about her dad because she feared he might tell the police, which she referred to as a “bad thing.”

While talking to Kim on the IRC channel, Mr. Citizen performed an IRC “whois” lookup at different times and found that she was coming in from Dialsprint.net on specific and different Internet Protocol (IP) addresses. I performed a Domain Name lookup on Dialsprint.net and found that the domain named was registered to Sprint Communications Company, LP from Overland Park, Kansas. I know Sprint to be an Internet Service Provider (ISP). An ISP is typically used by a homeowner or business to access the Internet, which includes IRC. Internet Relay Chat is accessed via the Internet.

The IRC offers “channels” where people sharing a common interest on a subject met to exchange information on that topic. The information is shared through typed communication and it is live. Mr. Citizen told me that the channel he moderates is called familynudism and he used the nickname Citi-ZN when acting as the channel operator.

I determined that the channel did exist on IRC and on different dates and times Citi-ZN was listed as the moderator. I viewed the channel for a while and found that most of the conversation pertained to non-erotic nudism or current events. I performed a “whois” on the nickname and found that Citi-ZN was coming in from a server known as Primus.Ca in Canada, which is consistent with the information that Mr. Citizen had previously provided to me. He said he was from Canada and he used the Primas.ca account to file the complaint with DOJ.

I know based on my knowledge and experience that Internet Providers maintain logs that can be used to identify a customer by three key pieces of information: an IP address and a date and time in which that customer was logged into a computer using that IP address.

Mr. Citizen had previously provided the IP address but was missing the date and time of the connection. I contacted Mr. Citizen. Mr. Citizen did not record the date and time during the previous conversations but agreed to do so the next time Kim contacted him in the IRC channel. I instructed Mr. Citizen to log the conversation and provided instruction on how to change a function in the program he was using (mIRC) to log the typed conversation.

I came to work on Tuesday, 11/13/01, and checked my e-mail. There was an message from Mr. Citizen. Mr. Citizen said that Kim had contacted him twice on Saturday, 11/10/01, once in the morning and once in the evening, where a conversation ensued on both occasions. Mr. Citizen said that Kim again told him in greater detail that her father has had sexual intercourse with her and that this was currently going on.

Mr. Citizen recorded the necessary connection information, which is as follows:

On 11/10/01 from about 0655 hours Pacific Standard Time (PST) to about 0740 hours using 63.178.147.69 (sdn-ar-007carcorP109.dialsprint.net).

On 11/10/01 from 21:19:37 hours Pacific Standard Time (PST) to approximately 22:15:00 and, from approximately 22:15:00 to about 23:05 was connected to 206.133.209.247 (sdn-ar-004carcorP231.dialsprint.net). Mr. Citizen told me that during their conversation, Kim disconnected from the IRC server, then shortly thereafter reconnected using the same IP address.

On 11/15/01, I spoke to Tim Nibby, a system administrator for Sprint in charge of the dial-up service. Nibby confirmed Sprint can identify a customer using an IP address and date and time of connection. Nibby further provided that Sprint maintains the address of such a customer in records called subscriber information, which can be used to further identify Kim. These records are maintained at Sprint. I provided Nibby with the above IP numbers that Mr. Citizen had previously given to me. I asked Nibby to look up the location of the server. Nibby confirmed that this was a dial-up account, meaning Kim had used telephone line to call the Sprint computer(s), which was then used to eventually go to the IRC channel. Nibby said the Sprint computer(s) she was dialing into was located in Rancho Cordova, California. Nibby said a typical Sprint dial-up customer will live within the area where the computer is located or at least within the same area code so that the call into the computer is not long distance so there is no charge to the customer. The area code in Rancho Cordova is 916.

This area is consistent with the area Kim had alluded to in her conversations with Mr. Citizen. Kim said she lived somewhere between Yosemite and South Lake Tahoe and had heard of Placerville, Coloma and Sutter's Mill, all areas near Rancho Cordova.

I know based on my knowledge and experience that ISPs maintain records on their customers, which include the customers' names and billing addresses. This information is known as subscriber information and can be used to reveal the identity of Kim. Additional records, including correspondence and a record of contacts between the account holder and Sprint regarding the yet-to-be-identified account, can be used to further identify Kim.

I know based on my knowledge and experience that ISPs keep records of each customer, including the name of the account holder and any other user assigned to the account, and connection history, including the IP address used and the date and time of connection, the method of connection, and the above information as it relates to the computer the user was connected to. In other words, Sprint may be able to tell if Kim was connected to an IRC network and the name of the network, which then can be correlated back to the information the Mr. Citizen had provided on her.

In the best interest of Kim, a child, I ask the courts to order Sprint not to disclose the existence of the warrant to the company's yet-to-be-identified customer for a period of 90 days to give law enforcement time to determine through further investigation if Kim is

a child being molested by her father and other adults who are known to her. The name on the Sprint account may be in Kim's father's name, and he is a possible suspect in this matter. Disclosing the search warrant to this person may interfere with the continuing investigation and may place Kim in further harm.

I contacted Rochelle Young, a Security Coordinator with Sprint. Young said that Sprint is an Internet Service Provider and as such does business in California and provided the company's agent of service: Prentice Hall Corporation, located at 2730 Gateway Oaks Drive, Suite 100 in Sacramento, California.

Conclusion:

I believe based on the afore statement that Kim may be a victim of child molestation in violation of Penal Code section 288 when she was 8 years old and currently while she is estimated to be 13 years old. I believe that records at Sprint Communications Company LP will reveal and assist in revealing the name and address of the victim, which will be then used to further investigate this matter.

I pray a search warrant be issued for the following locations:

Sprint Communications Company LP, 6330 Sprint Parkway, Overland Park, Kansas 66251.

Further described as:

an Internet Service Provider doing business in California and has as an agent of service Prentice Hall Corporation, located at 2730 Gateway Oaks Drive, Suite 100 in Sacramento, Sacramento County, California, and a business that has computer equipment in Rancho Cordova, Sacramento County, California, that was used to develop the following requested records.

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- (b) On 11/10/01 from approximately 0655 hours to about 0740 hours PST using IP address 63.178.147.69.(sdn-ar-007carcorP109.dialsprint.net).

I declare under penalty of perjury that the information contained above in this Statement of Probable Cause is true and correct to the best of my knowledge.

Special Agent Jane Doe, Affiant